

SINCE THE IMPLEMENTATION of the four Labour Codes on November 21, the government has been getting positive feedback on several of its aspects and is also working to clarify concerns, says Vandana Gurnani, Secretary, Ministry of Labour and Employment. In an interview to BT, she explains that the ministry is now working on framing rules, implementing the Codes and rolling out the digital infrastructure. Edited excerpts:



What is the feedback you have received on the Labour Codes over the last few weeks?

The overall feedback has been extremely positive and constructive and also very forward looking. There has been extremely positive feedback from many of the workers and trade unions on several progressive moves which enhance workers' welfare. This includes the universalisation of minimum wages, which were earlier available to only 30-35% of the workforce, mandatory appointment letters, because they ensure that the benefits are transparent, and encourage formalisation, which is equally important for workers. The Code on Wages also has clear provisions for timely payment of

wages. The provision of flexibility to workers is also being appreciated because it gives them agency and autonomy. It also gives employers flexibility, like when they have peak requirement of workers, they would be able to adjust schedules accordingly, and even when workers or employees have to work beyond eight hours in a day or 48 hours in a week, there is a provision for overtime, which is at twice the rate of normal wage.

that is being appreciated. This is beneficial to industry as it increases productivity and will be able to detect any red flags on occupational safety in the workplace, so that immediate corrective action can be taken.

Industry is appreciating these measures because these will enhance productivity as well as retention. Workers who are productive, happy and satisfied also stay longer. There has been a

employees.

The flexibility in working hours, the concept of inspector-cum-facilitator, the digital processes under the Codes make it very efficient and transparent and remove human interface. Provisions of auto registration, auto renewal of licences, which are going to very strongly bring down the compliance cost. Essentially, it's going to make it easier for industries to carry on their busi-

FOR WOMEN WORKERS, THE LABOUR CODES REMOVE ALL KINDS OF DISCRIMINATION, WHICH HINDERED THEIR EMPLOYMENT

| 27

The universalisation of social security, which was earlier limited to a few sectors, has also been appreciated. The welfare provisions under the Code on Occupational Safety, Health and Working Conditions are also being appreciated. Any establishment with more than 10 workers must have certain minimum welfare provisions that have been defined based on various threshold of workers in the Codes such as canteen facility, resting facility. Annual health check-ups for workers aged above 40 is another element

lot of positive feedback on the huge amount of compliance reduction as part of the Codes, including single return, single registration as well as decriminalisation. Earlier, there were about 87 provisions that attracted criminal liability, which is now down to 22, out of which 16 are compoundable. The major ones that are criminal or not compoundable are six, which are also the serious ones in case of violation of safety standards or in case of non-remitting of social security contributions collected from

ness and also to expand when they need to do so. It's also going to be a very transparent and predictable and efficient system.



What is the road map for implementation in terms of rule framing and notification?

We see this entire road map in about three buckets or so. One is the legal aspects. The first and most important is the pre-publication and final publication of rules, both by the Centre as well as states, which will operationalise the Codes